

TENTATIVE RULING

Case: **Castaneda v. FCA US, LLC**
Case No. CV-2024-3366

Hearing Date: **January 8, 2026** **Department Fourteen** **9:00 a.m.**

The Court, in its discretion, considers plaintiff Francisco Castaneda's untimely opposition and defendants FCA US, LLC and Hoblit Chrysler Dodge Jeep Ram's untimely reply. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"].)

Defendants' motion to compel inspection of plaintiff's vehicle is **DENIED AS MOOT**. (Code Civ. Proc., § 2031.300.) Plaintiff traded-in/sold the vehicle sometime before October 7, 2025. (Washington decl., ¶¶ 3-6.)

Parties are **DIRECTED TO APPEAR** to discuss defendants' request for appropriate alternative discovery relief, including "an order compelling Plaintiff to produce all documents relating to the sale or transfer of the vehicle and awarding monetary sanctions." (Reply, p. 4; Downs decl., ¶¶ 3-12, Exhibits A-D; Washington decl., ¶¶ 8-10; Downs suppl. decl., ¶¶ 2-9, Exhibit A.)

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
Case No. CV-2025-0929

Hearing Date: **January 8, 2026** **Department Eleven** **9:00 a.m.**

Based on the supplemental declaration Eric F. Della Santa filed on December 23, 2025, including the exhibits attached thereto, the Court is satisfied that the subpoenas at issue in plaintiff Nadir Malik’s motion to quash subpoenas to third parties have been withdrawn; thus, plaintiff’s motion is **DENIED AS MOOT**. (Della Santa Sup. Decl., ¶¶ 2 – 5, Exhibits A – C.)

Plaintiff’s request for the issuance of a protective order requiring defendant to seek Court approval before contacting third parties, and plaintiff’s request for the imposition of judicial oversight on all further discovery are **DENIED** as no legal authority was provided in support of the requested relief. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Nonetheless, the Court may not provide prospective relief. (See *Alliance San Diego v. California Taxpayers Action Network* (2025) 114 Cal.App.5th 1121, 1135 [“Ripeness is a doctrine that applies to prevent courts from issuing purely advisory opinions or resolving abstract differences of opinion.”].)

Defendant Flagstar Bank, N.A.’s request for sanctions is **GRANTED IN PART** in the amount of **\$2,070.00**. (Code Civ. Proc., §§ 2023.010, 2023.030; Della Santa Decl., ¶ 5.) The Court declines to award sanctions for time not yet incurred. (*Tucker v. Pacific Bell Mobile Services* (2010) 186 Cal.App.4th 1548, 1563 [“...the use of the past tense - “incurred - in section 2023.030 suggests the individual seeking sanctions must have already become liable for those expenses before those expenses can be awarded as sanctions.”].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.